

HOUSE BILL 2040

By Parkinson

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to threats against certain persons.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 16, Part 5, is amended by adding the following as a new section:

(a) A person commits an offense who intentionally communicates a threat to a public official, or a member of a public official's immediate family, and:

(1) The person communicating the threat knows the person threatened is a public official or a member of the public official's immediate family;

(2) The person communicating the threat intends the communication to be a threat of harm to the public official, or a member of the public official's immediate family, because of the public official's official capacity; and

(3) A reasonable person would perceive the communication to be a threat of harm.

(b) A violation of subsection (a) is a Class E felony.

(c) As used in this section:

(1) "Communicate" means the same as defined in § 39-17-308;

(2) "Immediate family" means a public official's spouse, parent, sibling, or child and includes stepparents, stepchildren, stepsiblings, and adoptive relationships; and

(3) "Public official" means the same as defined in § 39-16-516.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.